GLM BRANDING · DATA PROTECTION

Procedure for requests from public authorities for personal data

What we do when the police, a court, a regulator, a tax or security authority, or any government body asks us for information about our customers, staff or other people.

Organisation	GLM Branding — registered name: _____
Applies to	All staff, and anyone who works on our behalf, who may receive such a request in any form: letter, email, telephone call, a visit, a message on WhatsApp or any other channel.
Responsible person	Name: _____ Role: _____
Legal adviser	Name / firm: _____ Phone: _____
Version and date	Version 1 · adopted on _____ · review every 12 months

1 Purpose

We hold personal information about customers (names, phone numbers, emails, orders, invoices, payments, messages and documents we have sent them) and about staff. We protect it under Kenya's Data Protection Act, 2019. This procedure makes sure that when a public authority asks for it, we **disclose only what the law requires and nothing more**, we can show we checked, and we keep a record.

2 Principles

- **Review the legality of every request.** We do not hand over personal data just because an official asks. The request must rest on a legal power (for example a court order, a warrant, or a specific provision of a law) that applies to us and to this information.
- **Challenge a request that is unlawful, too wide or unclear.** We have the right to question it, ask for it to be narrowed, ask for a court order, or object through the proper legal route.

- **Disclose the minimum necessary.** Only the people, the fields and the dates the request actually needs.
- **Record every request and what we did.** Including the reasoning and who was involved.
- **No staff member decides alone.** Only the responsible person (section 3) may decide, with our legal adviser.
- **Never disclose access credentials** — passwords, PINs, tokens, API keys or the keys that protect our backups — in answer to any request.

3 Who does what

Person	Responsibility
Any staff member	Does not answer the request, does not hand over anything, does not confirm whether we hold information. Takes the requester's name, agency, contact details and a copy of any document, says "the matter will be referred to our management", and passes it to the responsible person **the same day**.
Responsible person	Owns the request from receipt to closing: checks the requester, reviews legality with the legal adviser, decides, supervises the disclosure, records everything in the register, and reports to the owners.
Legal adviser	Gives a view on whether the request is lawful and what may be disclosed; helps with any challenge.
System administrator	Extracts only what the responsible person instructs, from the system's own records, and logs what was extracted.

4 The steps

STEP 1 — RECEIVE AND LOG

- Write down the date and time, the channel, who asked, which agency, their contact details, what they want and by when.
- Open a line in the register (page at the end) with a reference number.

STEP 2 — CHECK WHO IS ASKING

- Ask for the request **in writing**, on the agency's letterhead or official email, signed, giving the legal basis and the reference of any case or order.
- Verify it independently — call the agency on a number we find ourselves, not one given in the request. A telephone request alone is never enough.
- If the person cannot be verified, do not disclose. Record that.

STEP 3 — REVIEW THE LEGALITY

With the legal adviser, answer in writing:

- What power does the request rely on? Is it a court order, warrant or a specific provision of law, and is it valid and current?
- Does it apply to us, and to the people and information named?
- Is it limited in scope and in time, or is it a broad "everything you hold" request?
- Does the law forbid us from telling the person concerned?
- Is a lesser step enough (for example confirming a fact instead of giving the record)?

STEP 4 — DECIDE

Decision	When
Comply	The request is lawful, specific and verified.
Comply in part	Part of it is lawful or needed; the rest is refused or narrowed.
Challenge	It is unlawful, unclear, too wide, or the basis is missing. Reply in writing asking for the legal basis or a court order, for the scope to be narrowed, or for more time; object or appeal through the proper legal route where needed. Disclose nothing meanwhile unless the law compels it.
Refuse	The request has no lawful basis and is not corrected after we have asked.

STEP 5 — DISCLOSE THE MINIMUM

- Give only the people, fields and dates the request needs. Leave out everything else, including other customers on the same invoice or message.
- Use a secure route: delivery in person against a signed receipt, or an encrypted file; never open WhatsApp or a public link.
- Keep a copy of exactly what was supplied.

STEP 6 — TELL THE PERSON, UNLESS PROHIBITED

Where the law does not prevent it, tell the person concerned that their information was requested and what we supplied. If a law or an order stops us from telling them, record that fact and the reference.

STEP 7 — RECORD AND CLOSE

- Complete the register line: the request, who made it, the legal basis relied on, our reasoning, the decision, what was disclosed, the date, and who was involved.
- Keep the register and the papers for at least **seven years**, or as the law requires, in a place only the responsible person can open.

5 National security requests

A request that cites national security, terrorism or the safety of the state is handled by the same steps, with these additions:

- The responsible person informs the legal adviser **immediately**, before any decision.
- We disclose only under a valid written legal order or warrant, and only the minimum it requires.
- Where the order forbids us from saying anything, we record that the order exists and the date, and keep the order itself.
- Each year the responsible person counts how many people's information was shared in national-security requests, so that the numbers can be reported when a platform such as Meta asks. The count is "none" if there were no such disclosures.

6 Data we receive from Meta (WhatsApp)

The system uses WhatsApp to send documents to customers. The data it keeps that comes from Meta is limited to its access token, message identifiers and the sent or failed status. The access token is never disclosed to anyone in answer to a request. Phone numbers and messages relating to a customer are customer data and are handled under this procedure like any other.

7 Training and review

- Every new staff member is told on joining: *"If an official asks for information about a customer or colleague, do not give it — take their details and call the responsible person."*
- The responsible person reviews this procedure and the register every 12 months and after any request that raised a difficulty.

8 Approval

Name	Role	Signature	Date

Register of requests from public authorities

One line for each request. Keep it with the papers; open it only to the responsible person.

Ref.	Date received	Agency and requester	What was asked	Legal basis stated and our review	Decision (comply / part / challenge / refuse)	What was disclosed	Person told? Date	Handled by

> **For Meta's questionnaire:** once this procedure is signed and in use, the policies that can truthfully be ticked are: required review of the legality of requests (Step 3), provisions for challenging requests (Step 4), data minimisation (Step 5) and documentation of requests (Step 7 and the register).